

THREE STAGES OF CIVIL SUIT

For better understanding of the present topic it is advisable here to discuss the different stages of a civil suit in a short manner. One of the major characteristics of adversarial legal system is that civil litigation process is a contest between two parties. Bangladesh belongs to adversarial legal system and under this system in civil litigation the two parties are the plaintiff on one hand and the defendant on the other hand. Under this process the court takes a non partisan role and the court does not play any role in the inquiry into the events rather arrange a hearing between the parties to decide within the complex set of rule whether the plaintiff is entitled to the right claimed which the defendant denies. In civil proceeding the standard of proof is the balance of probabilities namely more probably true than false. Thus if the plaintiff can establish a prima facie case before the court in favor of his claim and other parties does not adduce any evidence in his defense the court should deliver judgment in favor of plaintiff. Balance of evidence in favor of plaintiff on civil proceeding is also commonly known as the prima facie case and if the plaintiff fails to raise the prima facie case the court should deliver judgment in favor of defendant on the basis of 'no case to answer'. The whole civil judicial proceeding in courts is regulated by the different provisions of the Code of Civil Procedure-1908 and the Civil Rules and Order (C. R. O).

The stages of civil proceeding may be broadly categorized into the following stages:

- (1) Pre-trial stage
- (2) Trial Stage
- (3) Post trial stage

court. If a proceeding does not commence on the presentation of plaint it is not a suit even if a judgment may be passed in such proceeding. Plaint is considered to be document by presentation of which in a civil court, a party seeks relief from such court.²

Summon: Once the suit is filed successfully a summon is to be issued upon the defendant to appear on a date specified in the summon to appear and answer the claim.

Filing Written Statement:

If the summon is duly served upon the defendant and a written statement containing the answer of the claim of plaintiff and his own claim is to be submitted to the court on the date fixed on the summon. Filing of written statement is obligatory and non-filing of written statement will be considered as of the facts by the defendants³

Alternative Dispute Resolution:

By incorporating section 89A in the Code Alternative Dispute Resolution (ADR) was formally introduced in our legal system. Incorporation of ADR in the civil proceeding is

groundbreaking step taken by the Government of Bangladesh.⁴ At this stage the court takes an attempt to Mediate the dispute between the parties avoiding the formal procedure of Litigation.

First Hearing:

If the ADR process fails the court shall proceed from the stage at which the suit stood before the decision of ADR. At this stage court will examine the pleadings of the parties and try to determine the core of dispute.

Framing Issues:

At this stage the court will determine the issue of the suit. Issue arises When material proposition of fact and law is affirmed by one party and Denied by the other party.

Step under Section 30:

After framing issue the court may give order on application of the parties With regard to the delivery and answering of interrogatories, the admission of document and facts, and the discovery, inspection, production, impounding and return of documents or other material objects producible as evidence.

Settling Date (SD):

Now the court settles a date for peremptory hearing that is date for trial.

Trial Stage:

Opening the case:

It is the right of the plaintiff to open the case and at this stage the plaintiff states the nature of the case, issue in the case, evidence of the witnesses.

Peremptory Hearing (P H):

At this stage the plaintiff and defendant examine their own witness and Cross-examine the witnesses of the other and may re-examine the witness.

Argument:

After hearing the evidence of the witness of both parties the respective pleaders will be called upon to argue their case.

Post-trial stage:

Pronouncement of judgment:

Once the hearing is complete the court will pronounce judgment at once or reserve the judgment for future date. Every judgment contains

- (i) a concise statement of the case
- (ii) points for determination
- (iii) decision thereon
- (iv) reasons for decision.

Decree:

By the words of decree the court specifically determines and pronounces the rights of the parties in the present dispute.

Execution of decree:

This is the last stage of a civil proceeding and by application of the decree holder the court takes necessary step to execute the decree.

The question of arrest and detention in the civil proceeding may come either at the trial stage or at the post trial stage. Apart from the two parties namely plaintiff and defendant in civil suit the existence of witness is indispensable for delivery of justice. So the plaintiff, defendant and witness are the role characters in a civil suit.

Nature and Steps of a Civil Suit

Nature:

- A civil proceeding is an adversarial Process in Bangladesh.
- The standard of proof in a civil case is balance of probabilities.
- In a Civil suit a right is claimed by the plaintiff which has been denied by the defendant.
- In Bangladesh a Civil suit is regulated according to the Code of Civil Procedure' 1908.

Steps of a Civil Suit (In brief):

Pre-Proceeding Stage:

- In Bangladesh there is no mandatory mediation system before the filing of the case in case of a regular civil suit.
- There is a process of mediation only in case of polygamy, dissolution of marriage and maintenance under the Muslim Family Laws Ordinance' 1961.

Proceeding Stage:

- A Civil suit is started by the submission of a Plaint by the Plaintiff.
- A plaint is a statement of claim or redress.
- After examination of the Plaint by the Sherestadar, a court officer, the suit is entered into the Registrar of Suits and a Civil suit is started by this entry.
- Then the process (i.e. Summons) shall be issued to the defendant with a copy of the plaint to inform the defendant about the case against her and the date of appearance before the court.
- The defendant has to appear the court in the fixed date with her Written Statement (WS) which is a denial or the assertion of the claims of the plaintiff.
- **Alternative Dispute Resolution or ADR:** After submission of the Pleadings (Plaint and Written Statement) the court must try to mediate between the parties. If mediation is failed, the case shall move for the next step. In a civil suit mediation process is available only before the trial except a case under the Family Court Ordinance' 1985. In a Family court mediation is done for twice before the trial and after the Trial i.e. before the pronouncement of judgment. But arbitration is possible at any stage of the case. It means, if both the parties are agreed, they can withdraw the case and settle the dispute by an arbitrator according to the Arbitration Act' 2001.
- If mediation is failed, the Court shall fix a date for first hearing.
- At the first hearing Court shall examine the claims of the parties and frame the issues.
- A fact claimed by one party and denied by other is a matter of issue.
- After the framing of issue, section 30 step shall be followed which includes delivery and answering of interrogatories, the admission, discovery, inspection, production, impounding and return of documents or other objects by the parties.
- The Court shall also fix the date for final hearing or peremptory hearing (PH) or trial and order the parties to submit the list of witnesses, who will appear in support of them, in the settling date (SD).

Trial Stage:

- In the trial the trial is started by the opening statement of the plaintiff if the burden of proof is not shifted.
- After the opening statement the plaintiff shall produce the witnesses in favor of her who will be examined before the court.
- Examination of Chief shall be done by the own party's lawyer.
- Cross examination shall be done by the opposite party's lawyer.
- Re-examination shall be done by own party's lawyer if it is necessary.
- After the submission of the evidences by the plaintiff, the defendant may raise the plea that 'there is no case to answer' for the defendant and if the court is convinced, the case shall be dismissed.
- Otherwise, the defendant has to produce the witnesses before the court to submit the evidences by their examinations (Chief, Cross, Re).
- After the conclusion of the submission of the evidences, the parties (generally by the Lawyers) have to present their final arguments before the court on the basis of evidences submitted during the Trial.

- The party which opens the trial presents argument at the end.
- Argument is the last chance for the party to convince the court in its favor.

Judgment:

- After the conclusion of the trial, the court shall pronounce the judgment in the same day or later in a fixed date.
- The court may pass a Decree or an Order.
- Decree is the final adjudication of all the claims in a suit.
- Order is given on any specific claim in certain cases.
- After the passing of decree, the decree holder has to file an application in the competent court for the execution of the decree.